

Arti Singh v. M.D., U.P. Power Corporation

High Court of Judicature at Allahabad · Division Bench · 19 September 2017 · WRIT - C No. 43922 of 2017 · **Writ disposed; petitioner relegated to clause 6.5 authority.**

HEADNOTE

Writ against U.P. Power Corporation disposed with liberty to apply under clause 6.5 of the Electricity Supply Code, 2005; the competent authority is to decide any such application expeditiously. Merits of the electricity grievance were not examined.

FACTUAL SUMMARY

Arti Singh, a proprietor, filed a writ petition in the Allahabad High Court against the Managing Director of U.P. Power Corporation Limited and two other respondents. Counsel for both sides were heard. Having regard to the nature of the prayer, counsel for the respondents submitted that if the petitioner approached the competent authority under clause 6.5 of the Electricity Supply Code, 2005, the grievance would be considered and appropriate orders passed. The Court did not examine the merits of the dispute.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

relegation to competent authority

HOLDING

Where the prayer in a writ petition is of a nature that the licensee's counsel undertakes that the grievance will be considered if the consumer applies under clause 6.5 of the Electricity Supply Code, 2005, the High Court may dispose of the petition with liberty to make that application, directing the competent authority to decide it expeditiously, without examining the merits. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE PETITIONER'S ELECTRICITY GRIEVANCE AGAINST THE CORPORATION

Disposed solely on the 6.5 liberty; no finding on the underlying supply dispute. ¶ 1